

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DARIUS ANDREWS and PEARLA LYONS-PERSON,

Index No.:

Plaintiffs,

– against –

COMPLAINT

CITY OF NEW YORK, SERGEANT ALAN CHAU
(SHIELD NO. 1257), POLICE OFFICER KENNETH
TRIOLO (SHIELD NO. 13535), NYPD SUPERVISOR
JOHN DOES 1-3, POLICE OFFICER JOHN DOES 1-6, and
POLICE OFFICER JANE DOE,

JURY TRIAL DEMANDED

Defendants.

NATURE OF THE ACTION

1. From approximately 10:00 p.m. on July 6, 2018 through approximately 6:00 p.m. on July 8, 2018, one or more of the defendants, including Defendant City of New York, Defendant Sergeant Alan Chau, Defendant Police Officer Kenneth Triolo, Defendant NYPD Supervisor John Does 1-3, Defendant Police Officer John Does 1-6, and Defendant Police Officer Jane Doe (collectively, “Defendants”), caused injuries to the plaintiffs, Darius Andrews and Pearla Lyons-Person (collectively, “Plaintiffs”), by violating state and federal law and giving rise to the following causes of action: false arrest/false imprisonment (continuing for approximately two days); illegal (warrantless) search and seizure; excessive force; supervisory liability; failure to intervene; assault; battery; and negligence in hiring, training, supervising, and retaining police officers. (The allegations in this paragraph occurring between approximately 10:00 p.m. on July 6, 2018 and approximately 6:00 p.m. on July 8, 2018, and as further detailed below, are hereinafter referred to, collectively, as the “Incidents.”)

2. Defendants caused injuries to Mr. Andrews, including loss of freedom, lost wages, medical expenses, physical injuries, and psychological injuries, among other things. Defendants caused injuries to Ms. Lyons-Person, including loss of freedom, lost wages, physical injuries, medical costs, and psychological injuries, among other things. (The injuries alleged by Plaintiffs in this paragraph are hereinafter referred to, collectively, as the "Injuries.")

PARTIES

3. Plaintiff Darius Andrews ("Mr. Andrews" or "Plaintiff Andrews") is, and was at the time of the Incidents, a resident of Kings County, State of New York.

4. Plaintiff Pearla Lyons-Person ("Ms. Lyons-Person" or "Plaintiff Lyons-Person") is, and was at the time of the Incidents, a resident of Kings County, State of New York.

5. Defendant City of New York is, and was at the time of the Incidents, a municipal corporation duly organized under, and existing by virtue of, the laws of the State of New York.

6. Defendant Sergeant Alan Chau ("Chau") was, at the time of the Incidents, a sergeant employed by the New York City Police Department (the "NYPD") – and thus Defendant City of New York – stationed at the NYPD's 67th Precinct with shield number 1257. Defendant Chau was wearing a body camera during a portion of the Incidents.

7. Defendant Police Officer Kenneth Triolo ("Triolo") was, at the time of the Incidents, a police officer employed by the NYPD – and thus Defendant City of New York – stationed at the NYPD's 67th Precinct with shield number 13535. Defendant Triolo was Plaintiffs' arresting officer, and he was wearing a body camera during a portion of the Incidents.

8. Defendant NYPD Supervisor John Does 1-3 (the "NYPD Supervisors") were, at the time of the Incidents, members of the NYPD (at a rank higher than police officer) employed by the NYPD – and thus Defendant City of New York – stationed at the NYPD's 67th Precinct with shield number 13535. The NYPD's 67th Precinct's command log and roll call will indicate

the members of the NYPD at a rank higher than police officer on duty at the time of the arrests and the member of the NYPD who was supposed to be (but was not necessarily) at the desk.

9. Defendant Police Officer John Does 1-6 ("John Does") were, at the time of the Incidents, male members of the NYPD (presumably at the rank of police officer) employed by the NYPD – and thus Defendant City of New York – stationed at the NYPD's 67th Precinct. Defendant John Does were wearing body cameras during a portion of the Incidents.

10. Defendant John Doe #1 is a younger Caucasian man, was in uniform, is tall with a medium build, and had short, dark hair. He was present during Plaintiffs' handcuffing and/or searches of 198 East 52nd Street. He was wearing a body camera during a portion of the Incidents.

11. Defendant John Doe #2 has an olive complexion, was in uniform, is tall with a medium build, was not clean shaven, and had short, dark hair. He was present during Plaintiffs' handcuffing and/or searches of 198 East 52nd Street. He was wearing a body camera during a portion of the Incidents.

12. Defendant John Doe #3 has brown skin, was in a uniform with a white shirt (indicating a rank above police officer), is shorter with a medium-to-heavy build, and short, dark hair. He was present during Plaintiffs' handcuffing and/or searches of 198 East 52nd Street. He was wearing a body camera during a portion of the Incidents.

13. Defendant John Does #4-6 are the members of the NYPD who transported Plaintiffs from 198 East 52nd Street to the NYPD's 67th Precinct.

14. Defendant Police Officer Jane Doe was, at the time of the Incidents, a female police officer ("Jane Doe") employed by the NYPD – and thus Defendant City of New York – stationed at the NYPD's 67th Precinct. Defendant Jane Doe was present at 198 East 52nd Street

during the arrests and searches; she is Caucasian, was in uniform, is average height with a medium build, and had her hair pulled back. Defendant Jane Doe was wearing a body camera during a portion of the Incidents.

15. Defendants Chau, Triolo, NYPD Supervisors, John Does, and Jane Doe are referred to herein, collectively, as the “Individual Defendants.”

16. At all relevant times, including, but not limited to, the time during which the Incidents took place, each of the Individual Defendants was acting, in uniform, under color of state law.

17. At all relevant times, including, but not limited to, the time during which the Incidents took place, each of the Individual Defendants was acting within the scope of his or her employment with the NYPD (and thus Defendant City of New York).

JURISDICTION AND VENUE

18. This Court has jurisdiction over the parties pursuant to New York’s Civil Practice Law and Rules (“CPLR”) §301.

19. Venue in this county is proper pursuant to CPLR §503 and §504(3), as the incidents giving rise to this action occurred in this county and Plaintiffs reside in this county.

20. Plaintiffs each demand judgment against Defendants in an amount exceeding the jurisdiction of all lower courts.

PROCEDURAL REQUIREMENTS

21. Plaintiffs have complied with General Municipal Law Section 50 and all procedural requirements necessary to commence a lawsuit against Defendants, including Defendant City of New York.

22. This is an action for the Injuries (loss of freedom, lost wages, physical injuries, medical costs, and psychological injuries, among other things), sustained by Plaintiffs arising out of the Incidents.

23. On October 4, 2018, within ninety days after the accrual of the instant action, a satisfactory Notice of Claim was filed with Defendant City of New York, or its agent(s), on behalf of Plaintiffs.

24. On or about May 8, 2019, Plaintiffs appeared for, and testified at, a hearing pursuant to Section 50(h) of the General Municipal Law of New York at the request of Defendant City of New York (or its agent(s)).

25. Defendant City of New York (and/or its agent(s)) has refused or neglected to make any adjustment or payment on Plaintiffs' claims (as stated in their Notices of Claim).

26. Plaintiffs commence this action within one year and ninety days of the date of accrual of the instant action.

FACTUAL ALLEGATIONS

27. At approximately 10:00 p.m. on July 6, 2018, Mr. Andrews was inside the garage behind the apartment building located at 198 East 52nd Street, Brooklyn, New York 11203.

28. At approximately 10:00 p.m. on July 6, 2018, Ms. Lyons-Person was on the enclosed porch in front of 202 East 52nd Street, Brooklyn, New York 11203, where she resides.

29. At the time of the Incidents, and still today, the buildings at 198-202 East 52nd Street were/are joined, but they did/do not connect from the inside of the building, the back yards, or the porches. Everything is separated between the properties.

30. At the time of the Incidents, and still today, neither Plaintiffs nor their family members owned/own any portion of the properties at 198 East 52nd Street or 202 East 52nd Street.

31. At the time of the Incidents, and still today, neither Plaintiffs nor their family members resided/reside at 198 East 52nd Street.

32. At the time of the Incidents, Defendant Triolo and Defendant Chau knew Plaintiffs did not reside at 198 East 52nd Street.

33. At the time of the Incidents, Defendant Triolo and Defendant Chau knew that neither Plaintiffs nor their family members owned any portion of the properties at 198 East 52nd Street or 202 East 52nd Street.

34. Defendant Chau had been to the location before during a prior arrest and, on July 6, 2018, sought out Ms. Lyons-Person. Defendant Chau found Ms. Lyons-Person at 202 East 52nd Street and demanded that she come out from the private property. When she refused, Defendant Chau (followed by one of Defendant John Does), entered that private property, took her to 198 East 52nd Street, and entered that private property illegally – without reasonable

suspicion, much less probable cause, to believe Ms. Lyons-Person was involved in any criminal activity afoot at that location (or anywhere else).

35. Defendant Chau and one of Defendant John Does escorted Ms. Lyons-Person from the private property at 202 East 52nd Street over to 198 East 52nd Street, through the gate separating the driveway connected to the apartment building at 198 East 52nd Street from the street.

36. Defendants Chau, Triolo, John Does, and Jane Doe found approximately 10-15 people in the garage playing pool, watching television, and having conversations.

37. Defendant Chau forced Ms. Lyons-Person to use her phone to call her husband in an effort to entrap and arrest him.

38. Defendant Chau opened the door of the garage behind the apartment building located at 198 East 52nd Street and entered the garage illegally without reasonable suspicion, much less probable cause (or any other justification), to believe that there was any criminal activity afoot at that location (or anywhere else).

39. Defendant Chau opened the door to the basement apartment at 198 East 52nd Street, entered, and searched the apartment without reasonable suspicion, much less probable cause (or any other justification), to believe that there was any criminal activity afoot at that location (or anywhere else).

40. Defendants Chau and/or Triolo observed Mr. Andrews at the side of a counter having a conversation. Mr. Andrews was not selling alcohol.

41. Defendants Chau, Triolo, John Does, and Jane Doe never observed Plaintiffs selling alcohol.

42. Defendants Chau, Triolo, John Does, and Jane Doe never observed Plaintiffs consuming alcohol.

43. Defendants Chau, Triolo, John Does, and Jane Doe never observed Plaintiffs even touching or passing a container with any alcohol.

44. Defendants Chau and/or Triolo asked each patron with a drink how much they paid for the drink; they all responded that they did not pay for the drink – that drinks were not for sale.

45. Plaintiffs did not know who bought the alcohol present in the garage at 198 East 52nd Street.

46. Plaintiffs denied living at 198 East 52nd Street and gave their identification cards to Defendants Chau and Triolo – the cards state different addresses – to prove it.

47. The Individual Defendants knew, at the time of arrest, that Plaintiffs did not reside at 198 East 52nd Street.

48. The Individual Defendants knew, at the time they filled out the arrest paperwork, that Plaintiffs did not reside at 198 East 52nd Street.

49. Defendants Chau, Triolo, John Does, and Jane Doe intentionally initiated wrongful and excessive physical contact with Plaintiffs by placing handcuffs on Plaintiffs in an unreasonably tight fashion without Plaintiffs' consent.

50. Defendants Chau, Triolo, John Does, and Jane Doe intentionally placed Plaintiffs in apprehension of imminent harmful, offensive conduct, and unwanted contact, without justification or privilege.

51. Defendants Chau, Triolo, and John Does put Plaintiffs in the same police vehicle and transported them back to the 67th Precinct.

52. Defendants Chau, Triolo, and John Does stopped and got food while Plaintiffs were in the police vehicle on their way back to the 67th Precinct.

53. Mr. Andrews complained that his handcuffs were too tight at least three times to Defendants Chau, Triolo, John Does, and Jane Doe, who heard his pleas and ignored them.

54. Ms. Lyons-Person complained that her handcuffs were too tight at least three times to Defendants Chau, Triolo, John Does, and Jane Doe, who heard her pleas and ignored them.

55. None of the Individual Defendants read Plaintiffs their Miranda rights.

56. None of the Individual Defendants offered Plaintiffs a phone call.

57. The Individual Defendants denied Ms. Lyons-Person's request for a phone call.

58. The Individual Defendants lied to Plaintiffs' family members at the 67th Precinct by falsely stating that Plaintiffs were not there.

59. None of the Individual Defendants offered Mr. Andrews any food during his time in custody at the 67th Precinct.

60. None of the Individual Defendants offered Ms. Lyons-Person any food during her two days in custody (at the 67th Precinct or Central Booking).

61. None of the Individual Defendants filled out a form entitled "Police Action Licensed/Unlicensed Inspection" (PD Form 310-150), which is required when an officer performs a business inspection under the Alcohol Beverage Control Laws (the "ABC Laws").

62. None of the Individual Defendants sent any paperwork to the State Liquor Authority (the "SLA") regarding this incident.

63. No member of the NYPD has ever sent any paperwork to the SLA regarding incidents/business inspections occurring at 198 East 52nd Street.

64. Based on the testimony of Defendant Triolo, the arresting officer, and/or Defendant Chau, which did not amount to probable cause for either of Plaintiffs, the NYPD Supervisors approved Plaintiffs' arrests, held Plaintiffs at the NYPD's 67th Precinct for over six hours, and then sent them to Central Booking, where they stayed until the following day.

65. Based on the testimony of Defendant Triolo, the arresting officer, and/or Defendant Chau, the Office of the District Attorney charged Mr. Andrews with Criminal Nuisance and violations of the ABC Laws. Mr. Andrews was forced to miss work approximately five times to go to court; finally, Mr. Andrews got worn down and accepted an Adjournment in Contemplation of Dismissal in January 2019.

66. Based on the testimony of Defendant Triolo, the arresting officer, and/or Defendant Chau, Ms. Lyons-Person was not prosecuted, either because the Office of the District Attorney declined to prosecute her or the NYPD voluntarily voided her arrest.

67. Based on the testimony of Defendant Triolo, the arresting officer, and/or Defendant Chau, Ms. Lyons-Person was held in police custody during the entire day of July 7, 2018, causing her to miss work and be terminated from her employment. Members of the NYPD never offered Ms. Lyons-Person a phone call or allowed her to make a phone call when she asked to do so. She wished to call her employer to advise that she would miss work.

68. Either the District Attorney declined to prosecute Ms. Lyons-Person or the NYPD voided her arrest prior to arraignment. (Discovery will confirm this.)

69. Ms. Lyons-Person was let go from Central Booking without arraignment/prosecution at approximately 6:00 p.m. on July 8, 2018. She never saw a judge.

70. Defendant Chau specifically targeted Ms. Lyons-Person, illegally entered her private property, forced her to go to 198 East 52nd Street, forced her to call her husband in an

effort to lure him into an arrest, and arrested her. These actions constitute willful and wanton actions warranting punitive damages.

71. This action falls within one or more of the exemptions set forth in CPLR §1602.

FIRST CAUSE OF ACTION

**VIOLATION OF 42 U.S.C. 1983 – FALSE ARREST (Under Federal Law)
By Plaintiffs as Against Defendants Triolo, Chau, and the NYPD Supervisors**

72. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 71, inclusive, as though fully set forth herein.

73. Under the Constitution of the United States of America and 42 U.S.C. 1983, Plaintiffs have the right to be free from unreasonable and illegal searches and seizures, including false arrests.

74. Defendant Triolo, Defendant Chau, and the NYPD Supervisors violated Plaintiffs' civil rights when they intentionally arrested them, confined them, and/or approved their continued confinement, while they were conscious (and without consent, justification, privilege, or probable cause).

75. The actions of Defendant Triolo, Defendant Chau, and the NYPD Supervisors caused the Injuries (loss of freedom, lost wages, physical injuries, medical costs, and psychological injuries, among other things).

76. Defendant Triolo, Defendant Chau, and the NYPD Supervisors took the aforementioned actions against Plaintiffs during the course, and within the scope, of employment with the NYPD and Defendant City of New York.

77. Defendant Triolo, Defendant Chau, and the NYPD Supervisors were each acting under color of state law during the Incidents.

78. The actions taken by Defendant Triolo, Defendant Chau, and the NYPD Supervisors against Plaintiffs were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiffs to punitive damages in an amount to be determined at trial.

SECOND CAUSE OF ACTION
VIOLATION OF 42 U.S.C. 1983 – EXCESSIVE FORCE (Under Federal Law)
By Plaintiffs as Against the Individual Defendants

79. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 78, inclusive, as though fully set forth herein.

80. Under the Constitution of the United States of America and 42 U.S.C. 1983, Plaintiffs have the right to be free from brutal police conduct and the application of undue or excessive force during the course of an arrest and confinement.

81. The Individual Defendants violated Plaintiffs' rights when they placed handcuffs on them in an unreasonably tight fashion.

82. The Individual Defendants violated Plaintiffs' rights by repeatedly refusing to inspect Plaintiffs' handcuffs after Plaintiffs complained to them that the handcuffs were placed on them in an unreasonably tight fashion.

83. The Individual Defendants' actions caused the Injuries (loss of freedom, lost wages, physical injuries, medical costs, and psychological injuries, among other things).

84. The aforementioned actions taken by the Individual Defendants against Plaintiffs were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiffs to punitive damages in an amount to be determined at trial.

THIRD CAUSE OF ACTION
VIOLATION OF 42 U.S.C. 1983 – ILLEGAL SEARCHES (Under Federal Law)
As Against the Individual Defendants and Defendant Chau

85. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 84, inclusive, as though fully set forth herein.

86. Under the Constitution of the United States of America and 42 U.S.C. 1983, Plaintiffs have the right to be free from unreasonable searches and seizures (without a warrant or other justification).

87. The Individual Defendants violated Plaintiffs' rights by entering and searching the garage behind 198 East 52nd Street, which was closed, without a warrant or other justification.

88. The Individual Defendants violated Plaintiffs' rights by seizing alcohol from the garage without a warrant or other justification.

89. Defendant Chau violated Plaintiffs' rights by entering and searching the basement apartment at 198 East 52nd Street, which was closed, without a warrant or other justification.

90. Defendant Chau violated Plaintiffs' rights by seizing alcohol from the basement apartment without a warrant or other justification.

91. The Individual Defendants' and Defendant Chau's actions caused the Injuries (loss of freedom, lost wages, physical injuries, medical costs, and psychological injuries, among other things).

92. The actions taken by the Individual Defendants and Defendant Chau against Plaintiffs were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiffs to punitive damages in an amount to be determined at trial.

FOURTH CAUSE OF ACTION
VIOLATION OF 42 U.S.C. 1983 – SUPERVISORY LIABILITY (Under Federal Law)
As Against Defendants Chau and the NYPD Supervisors

93. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 92, inclusive, as though fully set forth herein.

94. Defendant Chau participated directly in Plaintiffs' false arrest by having first-hand knowledge of the facts underlying the false/unconstitutional arrests and the fact that they lacked probable cause.

95. Defendant Chau participated directly in Plaintiffs' excessive force claims by having first-hand knowledge of the tight handcuffing/excessive force and Plaintiffs' complaints.

96. Defendant NYPD Supervisors, after being informed of the circumstances of the arrests not amounting to probable cause and thus violating Plaintiffs' rights, failed to remedy the wrong.

97. Defendant Chau's and Defendant NYPD Supervisors' actions caused the Injuries (loss of freedom, lost wages, physical injuries, medical costs, and psychological injuries, among other things).

98. The aforementioned actions taken by Defendant Chau and Defendant NYPD Supervisors against Plaintiffs were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiffs to punitive damages in an amount to be determined at trial.

FIFTH CAUSE OF ACTION**VIOLATION OF 42 U.S.C. 1983 – FAILURE TO INTERVENE (Under Federal Law)
By Plaintiffs as Against the Individual Defendants**

99. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 98, inclusive, as though fully set forth herein.

100. Under the Constitution of the United States of America and 42 U.S.C. 1983, police officers have an affirmative duty to protect the constitutional rights of citizens by intervening during the abuse of authority (and unconstitutional acts) perpetrated by other police officers in their presence.

101. The Individual Defendants violated Plaintiffs' constitutional rights when, in their presence, Defendant Triolo, Defendant Chau, and the NYPD Supervisors intentionally arrested Plaintiffs, confined them, and/or approved their continued confinement, while Plaintiffs were conscious (and without consent, justification, privilege, or probable cause).

102. The Individual Defendants violated Plaintiffs' constitutional rights when, in their presence, Defendant Chau and/or Triolo placed Plaintiffs' handcuffs on them in an unreasonably tight manner, yet did not intervene to protect Plaintiffs.

103. The Individual Defendants violated Plaintiffs' constitutional rights when, in their presence, various other police officers refused to aid Plaintiffs when they complained that handcuffs had been placed on him in an unreasonably tight manner, yet did not intervene to protect Plaintiffs.

104. The Individual Defendants' (in)actions caused the Injuries (loss of freedom, lost wages, physical injuries, medical costs, and psychological injuries, among other things).

105. The (in)actions taken by the Individual Defendants against Plaintiffs were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiffs to punitive damages in an amount to be determined at trial.

SIXTH CAUSE OF ACTION
BATTERY (Under New York State Law)
By Plaintiffs as Against the Individual Defendants

106. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 105, inclusive, as though fully set forth herein.

107. During the Incidents, one or more of the Individual Defendants intentionally initiated wrongful and excessive physical contact with Plaintiffs by placing handcuffs on them in an unreasonably tight fashion without their consent.

108. The Individual Defendants' actions caused the Injuries (loss of freedom, lost wages, physical injuries, medical costs, and psychological injuries, among other things).

109. The Individual Defendants took the aforementioned actions against Plaintiffs during the course, and within the scope, of employment with Defendant City of New York.

110. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, the Individual Defendants, taken against Plaintiffs during the course, and within the scope, of employment with Defendant City of New York.

111. The aforementioned actions taken by the Individual Defendants against Plaintiffs were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiffs to punitive damages in an amount to be determined at trial.

SEVENTH CAUSE OF ACTION
ASSAULT (Under New York State Law)
By Plaintiffs as Against the Individual Defendants

112. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 111, inclusive, as though fully set forth herein.

113. During the Incidents, the Individual Defendants intentionally placed Plaintiffs in apprehension of imminent harmful, offensive conduct, and unwanted contact, without justification or privilege.

114. The Individual Defendants' actions caused the Injuries (loss of freedom, lost wages, physical injuries, medical costs, and psychological injuries, among other things).

115. The Individual Defendants took the aforementioned actions against Plaintiffs during the course, and within the scope, of employment with Defendant City of New York.

116. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, the Individual Defendants, taken against Plaintiffs during the course, and within the scope, of employment with Defendant City of New York.

117. The aforementioned actions taken by the Individual Defendants against Plaintiffs were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiffs to punitive damages in an amount to be determined at trial.

EIGHTH CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, AND SUPERVISION (Under New York State Law)
By Plaintiffs as Against Defendant City of New York

118. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 117, inclusive, as though fully set forth herein.

119. Defendant City of New York had a duty to adequately hire, train, and supervise its police force during the Incidents.

120. Defendant City of New York has a duty to hire, train, supervise, and retain its police force to comply with the Fourth Amendment's requirement that warrantless searches and seizures be executed with probable cause (or other justification).

121. Defendant City of New York breached this duty by hiring, training, supervising, and retaining police officers who would (1) open the gate separating 202 East 52nd Street from the public sidewalk and enter the property without a warrant or other justification, (2) force Ms. Lyons-Person from the enclosed porch in front of her residence, located at 202 East 52nd Street, (3) walk Ms. Lyons-Person to the garage behind at 198 East 52nd Street without a warrant or other justification, (4) arrest Plaintiffs without a warrant or other justification, (5) search the basement apartment at 198 East 52nd Street without a warrant or other justification, and (6) seize alcohol from the basement apartment at 198 East 52nd Street without a warrant or other justification.

122. Defendant City of New York was on actual (or constructive) notice that its current police force engages in the conduct described above.

123. Defendant City of New York was on actual (or constructive) notice that one or more of the Individual Defendants engages in the conduct described above.

124. Defendant City of New York has a duty to hire, train, supervise, and retain its police force to read a citizen his or her Miranda rights before questioning him or her.

125. Defendant City of New York breached this duty by hiring, training, supervising, and retaining police officers, including Defendant Chau, who do not read citizen their Miranda rights before questioning them.

126. Defendant City of New York was on actual (or constructive) notice that its current police force engages in the conduct described above.

127. Defendant City of New York was on actual (or constructive) notice that one or more of the Individual Defendants engages in the conduct described above.

128. Defendant City of New York has a duty to hire, train, supervise, and retain its police force to allow a detained citizen to make a phone call and allow that phone call when requested (and not offered).

129. Defendant City of New York breached this duty by hiring, training, supervising, and retaining police officers who would allow Plaintiffs to make a phone call and allow them that phone call when requested (and not offered).

130. Defendant City of New York was on actual (or constructive) notice that its current police force engages in the conduct described above.

131. Defendant City of New York was on actual (or constructive) notice that one or more of the Individual Defendants engages in the conduct described above.

132. Defendant City of New York has a duty to hire, train, supervise, and retain its police force to refrain from entrapping citizens.

133. Defendant City of New York breached this duty by hiring, training, supervising, and retaining police officers, including Defendant Chau, who attempted to entrap and arrest Ms. Lyons-Person's husband.

134. Defendant City of New York was on actual (or constructive) notice that its current police force engages in the conduct described above.

135. Defendant City of New York was on actual (or constructive) notice that one or more of the Individual Defendants engages in the conduct described above.

136. Defendant City of New York had a duty to ensure that police officers refrain from asking detainees and arrestees to contact others for the purpose of entrapment.

137. Defendant City of New York breached this duty by hiring, training, supervising, and retaining police officers, including Defendant Chau, who forced Ms. Lyons-Person to contact her husband with the goal of entrapping and arresting him.

138. Defendant City of New York was on actual (or constructive) notice that its current police force engages in the conduct described above.

139. Defendant City of New York was on actual (or constructive) notice that one or more of the Individual Defendants engages in the conduct described above.

140. Defendant City of New York has a duty to hire, train, supervise, and retain its police force to refrain from applying handcuffs on detainees and arrestees without permanently injuring them.

141. Defendant City of New York breached this duty by hiring, training, supervising, and retaining police officers, including Defendants Chau and John Does, who handcuffed Plaintiffs in an unreasonably tight fashion, causing neurological and muscular injuries to Plaintiffs.

142. Defendant City of New York was on actual (or constructive) notice that its current police force engages in the conduct described above.

143. Defendant City of New York was on actual (or constructive) notice that one or more of the Individual Defendants engages in the conduct described above.

144. Defendant City of New York has a duty to hire, train, supervise, and retain its police force to respond to multiple complaints by detainees and/or arrestees when they complain about tight handcuffing and inspect the handcuffs.

145. Defendant City of New York breached this duty by hiring, training, supervising, and retaining police officers, including Defendants Chau and John Does, who did not respond to multiple complaints by detainees and/or arrestees when they complained about tight handcuffing and did not inspect their handcuffs.

146. Defendant City of New York was on actual (or constructive) notice that its current police force engages in the conduct described above.

147. Defendant City of New York was on actual (or constructive) notice that one or more of the Individual Defendants engages in the conduct described above.

148. Defendant City of New York has a duty to hire, train, supervise, and retain its police force in carrying out its official policies, including NYPD Patrol Guide Procedure No. 208-2, which states, in relevant part, that a member of the service is to “inform [a] prisoner of authority and cause” for an arrest prior to the arrest, absent specific circumstances.

149. Defendant City of New York breached this duty by hiring, training, supervising, and retaining police officers, including Defendants Chau and John Does, who did not inform Plaintiffs of the “authority and cause” for their arrests.

150. Defendant City of New York was on actual (or constructive) notice that its current police force engages in the conduct described above.

151. Defendant City of New York was on actual (or constructive) notice that one or more of the Individual Defendants engages in the conduct described above.

152. The Individual Defendants took the aforementioned actions against Plaintiffs during the course, and within the scope, of employment with Defendant City of New York.

153. The negligent (in)actions and breaches of the above-stated duties by Defendant City of New York in the hiring, training, supervision, and retention of one or more of the Individual Defendants caused Plaintiffs to sustain the Injuries (loss of freedom, lost wages, physical injuries, medical costs, and psychological injuries, among other things).

DEMAND FOR JURY TRIAL

154. Plaintiffs demand a trial by jury.

CONCLUSION

WHEREFORE, Plaintiffs each respectfully request that this Court enter Judgment in their favor and against Defendants as follows:

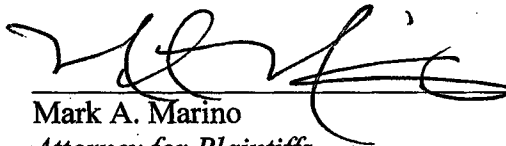
- a. compensatory damages, jointly and severally, in an amount to be determined at trial (and in an amount exceeding the jurisdiction of all lower courts);
- b. punitive damages, jointly and severally, in an amount to be determined at trial (and in an amount exceeding the jurisdiction of all lower courts);
- c. attorney's fees incurred during this action, pursuant to 42 U.S.C. 1988(b) or other applicable legal authority;
- d. costs incurred during this action, pursuant to 42 U.S.C. 1988(b) or other applicable legal authority;

- e. expert fees incurred during this action, pursuant to 42 U.S.C. 1988(c) or other applicable legal authority;
- f. all statutory interest on any sums awarded to Plaintiffs; and
- g. such other and further relief as the Court deems proper and fair.

Dated: New York, New York
August 15, 2019

Respectfully submitted,

MARK A. MARINO, PC



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